IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF MISSOURI

STEVE JOHNSON and LISA MARIE JOHNSON, d/b/a STEVE JOHNSON FARM; on behalf of themselves and all others similarly situated,

Plaintiffs,

v.

THE MOSAIC COMPANY; NUTRIEN LTD.; NUTRIEN AG SOLUTIONS, INC.; CF INDUSTRIES HOLDING, INC.; CF INDUSTRIES, INC.; CF INDUSTRIES NITROGEN, LLC; KOCH AGRONOMIC SERVICES, LLC; KOCH FERTILIZER, LLC; YARA INTERNATIONAL ASA; YARA NORTH AMERICA, INC.; and CANPOTEX LTD.,

Defendants.

Case No. 4:26-cv-00380-FJG

**CLASS ACTION COMPLAINT**

**JURY TRIAL DEMANDED**

Case No. _____

**CLASS ACTION COMPLAINT**

**JURY TRIAL DEMANDED**

## INTRODUCTION

1. This action arises from Defendants' conspiracy to fix, raise, maintain, and/or stabilize prices for nitrogen, phosphate, and potassium (potash) fertilizers ("NPK Fertilizers") from at least as early as January 1, 2021, until Defendants' unlawful conduct and its anticompetitive effects cease (the "Class Period"). Defendants' coordinated scheme has caused American farmers, agricultural cooperatives, and other purchasers throughout the fertilizer supply chain to pay artificially inflated prices for the essential crop nutrients upon which modern agriculture depends.

2. Defendants are the country's largest producers and sellers of NPK Fertilizers in the United States. Together, they control over 80% of the North American nitrogen fertilizer market, over 90% of the North American phosphate fertilizer market, and approximately 90% of the North American potash market. This extraordinary concentration

[1] "Defendants" is defined as The Mosaic Co., Nutrien Ltd., Nutrien Ag Solutions, Inc., CF Industries Holding, Inc., CF Industries, Inc., CF Industries Nitrogen, LLC, Koch Agronomic Services, LLC, Koch Fertilizer, LLC, Yara International ASA, Yara North America, Inc., and Canpotex Ltd.

of market power enabled Defendants to coordinate on prices to the detriment of purchasers at every level of the supply chain.

6. On March 4, 2026, Bloomberg reported that the U.S. Department of Justice Antitrust Division had opened a formal investigation into the pricing practices of major fertilizer producers to determine whether they colluded or coordinated to raise NPK Fertilizer prices charged to U.S. farmers. This investigation, together with Congressional testimony, executive branch action, and correspondence from leading farm organizations seeking antitrust enforcement, confirms the urgency of these claims.

3. Plaintiffs bring this case on behalf of all individuals and entities in the United States who purchased NPK Fertilizers directly from one or more Defendants. All putative class members were injured by Defendants' conspiracy, which artificially inflated NPK Fertilizer prices at every level of distribution throughout the United States.

## JURISDICTION AND VENUE

7. Plaintiffs and the proposed Class seek damages, injunctive relief, and disgorgement of ill-gotten profits for injuries sustained as a result of Defendants' violations of Section 1 of the Sherman Act and the common law of unjust enrichment.

4. Plaintiffs bring this action under Sections 4 and 16 of the Clayton Act, 15 U.S.C. §§ 15 and 26 for injunctive relief, including reasonable attorneys' fees and costs of this litigation, for Defendants' violation of Section 1 of the Sherman Act, 15 U.S.C. § 1, and under the common law of unjust enrichment.

## JURISDICTION AND VENUE

8. Plaintiffs bring this action under Sections 4 and 16 of the Clayton Act, 15 U.S.C. §§ 15 and 26 for injunctive relief, including reasonable attorneys' fees and costs of this litigation, for Defendants' violation of Section 1 of the Sherman Act, 15 U.S.C. § 1, and under the common law of unjust enrichment.

5. This Court has jurisdiction over this action under 28 U.S.C. §§ 1331 and 1337(a) and Sections 4 and 16 of the Clayton Act, 15 U.S.C. §§ 15(a) and 26.

9. This Court has jurisdiction over this action under 28 U.S.C. §§ 1331 and 1337(a) and Sections 4 and 16 of the Clayton Act, 15 U.S.C. §§ 15(a) and 26.

6. The Court also has jurisdiction under the Class Action Fairness Act of 2005, 28 U.S.C. § 1332(d) because: (a) there are more than 100 members of the Class; (b) citizenship of at least one proposed Class member is different from that of any Defendant; and (c) the matter in controversy, after aggregating the claims of the proposed Class members, exceeds $5,000,000, exclusive of interest and costs.

10. The Court also has jurisdiction under the Class Action Fairness Act of 2005, 28 U.S.C. § 1332(d) because: (a) there are more than 100 members of the Class; (b) citizenship of at least one proposed Class member is different from that of any Defendant; and (c) the matter in controversy, after aggregating the claims of the proposed Class members, exceeds $5,000,000, exclusive of interest and costs.

7. Venue is proper in this judicial district under 15 U.S.C. §§ 15, 22, and 26 and 28 U.S.C. § 1391(b) and (c) because, during the Class Period, one or more of the Defendants resided, transacted business, was found, or had agents in this District.

11. Venue is proper in this judicial district under 15 U.S.C. §§ 15, 22, and 26 and 28 U.S.C. § 1391(b) and (c) because, during the Class Period, one or more of the Defendants resided, transacted business, was found, or had agents in this District.

12. This Court has personal jurisdiction over each Defendant because each Defendant: (a) transacted business throughout the United States, including in this District; (b) participated in the sale and distribution of NPK Fertilizers throughout the United States, including in this District; (c) had substantial contacts with the United States, including in this District; and/or (d) was engaged in an illegal scheme and price-fixing conspiracy that was directed at and had the intended effect of causing injury to persons residing in, located in, or doing business throughout the United States, including in this District. Further jurisdictional contacts are alleged below.

## THE PARTIES

### PLAINTIFFS

13. Plaintiffs Steve Johnson and Lisa Marie Johnson are citizens and residents of Missouri, doing business as Steve Johnson Farm and operating in the state of Missouri. During the Class Period, Plaintiffs purchased NPK Fertilizers directly from Defendant Nutrien Ag Solutions, Inc. for end use and suffered antitrust injuries as a result of the violations alleged in this Complaint.

### DEFENDANTS

#### I. Mosaic

14. The Mosaic Company is a publicly traded company incorporated in Delaware with its principal place of business in Tampa, Florida. The Mosaic Company was formed in October 2004 by a merger between IMC Global and Cargill's crop nutrition division, immediately creating one of the world's largest producers of fertilizers. In 2016, Mosaic acquired Vale S.A.'s Vale Fertilizantes business, giving it access to two additional Potash plants in Brazil and Saskatchewan. Mosaic is currently one of the largest North American producers of Potash and Phosphorus Fertilizers. During the Class Period, Mosaic sold Phosphate Fertilizers and Potash to purchasers in the United States, including members of the Class.

## FACTUAL ALLEGATIONS

### A. The NPK Fertilizer Market and Its Susceptibility to Collusion

10. The United States NPK fertilizer market—comprised of nitrogen, phosphate, and potash (potassium) fertilizers—is indispensable to American agriculture. American farms cultivate over 220 million acres of cropland, generating unrelenting annual demand for NPK fertilizers. In 2024, the U.S. NPK fertilizer market was valued at approximately $30 billion.

11. Fertilizer demand in the United States is driven primarily by the intensive cultivation of row crops—particularly corn—which account for the majority of planted

acreage and fertilizer consumption. Corn production alone consumes approximately 45% of all nitrogen fertilizer applied domestically. In 2023, U.S. farmers planted approximately 89.9 million acres of corn. Demand for corn-based ethanol under the Renewable Fuel Standard further intensifies nitrogen fertilizer demand by mandating the conversion of over five billion bushels of corn annually into fuel. Every American farmer who grows corn, as well as certain other crops, must purchase NPK fertilizers each planting season, making these products a non-discretionary input cost that cannot be avoided. As Defendant Yara puts it, "Plant nutrients are building blocks of crop material. Without nutrients, the crops can not grow. ... Three main nutrients: Nitrogen, Phosphorus, and Potassium are the primary nutrients. ... They cannot replace each other, and lack of any one nutrient limits crop growth."

## Q. The Relevant Product Market Is NPK Fertilizers

130. To the extent a relevant product market needs to be defined in this action, it is the market for NPK Fertilizers. Additionally, or in the alternative, individual submarkets exist for Nitrogen Fertilizers, Phosphorus Fertilizers, and Potash.

## R. The Relevant Geographic Market Is National

131. Should a geographic market need to be defined in this action, it is the United States. Defendants produce and distribute NPK Fertilizers through locations across the United States and have increased NPK Fertilizer prices nationwide.

## STATUTE OF LIMITATIONS AND TOLLING

132. Plaintiffs and members of the Class had neither actual nor constructive knowledge of the facts constituting their claim for relief. Plaintiffs and Class Members did not discover and could not have discovered through the exercise of reasonable diligence, the existence of the knowledge of the facts constituting their claim for relief. Plaintiffs and Class Members did not conspiracy alleged herein until shortly before filing this action.

STATUTE OF LIMITATIONS AND TOLLING

12. Plaintiffs and members of the Class had neither actual nor constructive discover and could not have discovered through the exercise of reasonable diligence, the existence of the conspiracy alleged herein until shortly before filing this action.

133. Throughout the Class Period, Defendants effectively, affirmatively, and fraudulently concealed their anticompetitive agreement from Plaintiffs and members of the Class.

13. Throughout the Class Period, Defendants effectively, affirmatively, and fraudulently concealed their anticompetitive agreement from Plaintiffs and members of the Class.

134. Plaintiffs and members of the Class had no knowledge of the unlawful conduct alleged in this Complaint until early 2026, when U.S.D.A. made allegations that Defendants were engaging in anticompetitive conduct and DOJ's antitrust investigation was publicly revealed.

14. Plaintiffs and members of the Class had no knowledge of the unlawful conduct alleged in this Complaint until early 2026, when U.S.D.A. made allegations that Defendants were engaging in anticompetitive conduct and DOJ's antitrust investigation was publicly revealed.

135. Due to Defendants' fraudulent concealment, any applicable statute of limitations affecting or limiting the rights of action by Plaintiffs or members of the Class has been tolled during the period of such fraudulent concealment.

15. Due to Defendants' fraudulent concealment, any applicable statute of limitations affecting or limiting the rights of action by Plaintiffs or members of the Class has been tolled during the period of such fraudulent concealment.

## CLASS ALLEGATIONS

136. Plaintiffs repeat the allegations set forth above as if fully set forth herein.

## CLASS ALLEGATIONS

137. Plaintiffs bring this action individually and on behalf of all others similarly situated as a class action under Federal Rules of Civil Procedure 23(a) and 23(b)(3), seeking damages, as well as equitable and injunctive relief, on behalf of the following Nationwide Direct Purchaser Class:

All persons and entities in the United States who purchased NPK Fertilizers directly from one or more Defendants, or from any division, subsidiary, predecessor, agent, or affiliate of such Defendants, at any time during the period of January 1, 2021 ("Class Period") until Defendants' unlawful conduct and its anticompetitive effects cease to persist.

138. The following persons and entities are excluded from the above-described proposed Nationwide Direct Purchaser Class:

a. Defendants and their counsel, officers, directors, management, employees, subsidiaries, or affiliates;

b. All governmental entities;

c. All Counsel of Record; and

d. The Court, Court personnel, and any member of their immediate families.

139. ***Numerosity.*** The Class is so numerous as to make joinder impracticable. Plaintiffs do not know the exact number of Class members because such information is presently in the exclusive control of Defendants. Based on information and belief, there are likely, at a minimum, thousands of Class members in each Class.

140. ***Commonality.*** Common questions of law and fact exist as to all members of the Class. Each plaintiff in each Class was injured by the same unlawful scheme, Defendants' anticompetitive conduct was generally applicable to all members of each Class, and relief to each Class as a whole is appropriate. Common issues of fact and law include, but are not limited to, the following:

A. a. Whether the Defendants and their Unnamed Co-conspirators engaged in a combination or conspiracy to fix, raise, maintain, or stabilize prices for Nitrogen Fertilizers;

b. Whether the Defendants and their Unnamed Co-conspirators engaged in a combination or conspiracy to fix, raise, maintain, or stabilize prices for Phosphorus Fertilizers;

B. c. Whether the Defendants and their Unnamed Co-conspirators engaged in a combination or conspiracy to fix, raise, maintain, or stabilize prices for Potash;

C. d. The duration of the conspiracies alleged herein and the acts performed by Defendants and their Unnamed Co-conspirators in furtherance of the conspiracies;

D. e. Whether such conspiracies violated the federal antitrust laws;

f. Whether the conduct of Defendants and their Unnamed Co-conspirators, as alleged in this Complaint, caused injury to Plaintiffs and other members of the Class;

E. g. Whether Defendants caused Plaintiffs and the Class to suffer damages in the form of overcharges on NPK Fertilizers;

h. The appropriate class-wide measure of damages; and

i. The nature of appropriate injunctive relief to restore competition in the markets for NPK Fertilizers.

F. G. H. I.

141. ***Typicality and Adequacy.*** Plaintiffs' claims are typical of the claims of Class members, and Plaintiffs will fairly and adequately protect the interests of the Class. Plaintiffs and all members of the Class are similarly affected by Defendants' unlawful conduct in that they paid artificially inflated prices for NPK Fertilizers.

21. Typicality and Adequacy. Plaintiffs' claims are typical of the claims of Class

142. Plaintiffs' claims arise out of the same common course of conduct giving rise to the members, and Plaintiffs will fairly and adequately protect the interests of the Class. Plaintiffs claims of the other members of the Class. Plaintiffs' interests are coincident with and typical of, and all members of the Class are similarly affected by Defendants' unlawful conduct in that and not antagonistic to, those of the other members of the Class.

they paid artificially inflated prices for NPK Fertilizers.

153. Plaintiffs and members of the Nationwide Class are entitled to treble damages, attorneys' fees and costs, and an injunction against Defendants to end the ongoing violations alleged herein.

## COUNT 2 - 15 U.S.C. § 1

### Price Fixing of Phosphorus Fertilizers in Violation of Section 1 of the Sherman Act

*By Plaintiffs and the Class*

154. Plaintiffs repeat the allegations set forth in paragraphs 1 through 153 above, as if fully set forth herein.

155. Beginning at a time currently unknown to Plaintiff, but at least as early as January 1, 2021 (further investigation and discovery may reveal an earlier date), and continuing through the present, Defendants Nutrien, Mosaic and their co-conspirators entered into and engaged in a contract, combination, or conspiracy to unreasonably restrain trade in violation of Section 1 of the Sherman Act (15 U.S.C. § 1).

156. The contract, combination, or conspiracy consisted of an agreement among Defendants and their co-conspirators to fix, raise, stabilize, or maintain at artificially high levels the price of Phosphorus Fertilizers causing anticompetitive effects without sufficient procompetitive justifications.

157. Plaintiffs and members of the Nationwide Class have been injured and will continue to be injured in the form of overcharges on Phosphorus Fertilizers.

158. Defendants' anticompetitive conduct had the following effects, among others:

a. Competition among Defendants has been restrained or eliminated with respect to Phosphorus Fertilizer prices;

b. The prices of Phosphorus Fertilizers have been fixed, stabilized, or maintained at artificially high levels; and

c. Plaintiffs and members of the Class have been deprived of the benefits of free and open competition between and among Defendants.

## CLAIMS FOR RELIEF

### Count 1 – 15 U.S.C. § 1

### Price Fixing of Nitrogen Fertilizers in Violation of Section 1 of the Sherman Act

### By Plaintiffs and the Class

25. Plaintiffs repeat the allegations set forth above, as if fully set forth herein.

26. Beginning at a time currently unknown to Plaintiff, but at least as early as January 1, 2021 (further investigation and discovery may reveal an earlier date), and continuing through the present, Defendants and their co-conspirators entered into and engaged in a contract, combination, or conspiracy to unreasonably restrain trade in violation of Section 1 of the Sherman Act (15 U.S.C. § 1).

27. The contract, combination, or conspiracy consisted of an agreement among Defendants and their co-conspirators to fix, raise, stabilize, or maintain at artificially high levels the price of Nitrogen Fertilizer causing anticompetitive effects without sufficient procompetitive justifications.

28. Plaintiffs and members of the Class have been injured and will continue to be injured in the form of overcharges on Nitrogen Fertilizers.

173. The retention of these profits by Defendants violates the fundamental principles of justice, equity, and good conscience and should be returned to Plaintiffs and members of the Class.

## REQUEST FOR RELIEF

WHEREFORE, Plaintiff, on behalf of itself and the Class, respectfully asks this Court for the following:

WHEREFORE, Plaintiff, on behalf of itself and the Class, respectfully asks this Court for the following:

A. The Court determine that this action may be maintained as a class action under Rules 23(a) and (b)(3) of the Federal Rules of Civil Procedure, appoint Plaintiffs as Class Representative and its counsel of record as Lead Class Counsel, and direct that notice of this action, as provided by Rule 23(c)(2) of the Federal Rules of Civil Procedure, be given to the Class, once certified;

B. The Court adjudge and decree that the acts of Defendants are illegal and unlawful, including conspiracies, and acts done in furtherance thereof by Defendants and their co-conspirators be adjudged to have been a per se violation (or alternatively illegal under a quick look or rule of reason standard) of Section 1 of the Sherman Act (15 U.S.C. § 1);

C. The Court permanently enjoin and restrain Defendants, their affiliates, successors, transferees, assignees, and other officers, directors, agents, and employees thereof, and all other persons acting or claiming to act on their behalf, from in any manner continuing, maintaining, or renewing the conspiracies alleged herein, or from entering into any other contract, conspiracy, or combination having a similar purpose or effect, and from adopting or following any practice, plan, program, or device having a similar purpose or effect;

D. The Court grant Plaintiffs and members of the Class all other equitable relief in the nature of disgorgement, restitution, and/or the creation of a constructive trust to remedy the Defendants' unjust enrichment;

E. The Court enter judgment against Defendants, jointly and severally, and in favor of Plaintiffs and members of the Class for treble the amount of damages sustained by Plaintiffs and the Class, as allowed by law, together with costs of the action, including reasonable attorneys' fees, pre- and post-judgment interest at the highest legal rate from and after the date of service of this Complaint to the extent provided by law; and

F. The Court award Plaintiffs and members of the Class such other and further relief as the case may require and the Court may deem just and proper under the circumstances.

173. The retention of these profits by Defendants violates the fundamental principles of justice, equity, and good conscience and should be returned to Plaintiffs and members of the Class.

## REQUEST FOR RELIEF

WHEREFORE, Plaintiff, on behalf of itself and the Class, respectfully asks this Court for the following:

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B. The Court adjudge and decree that the acts of Defendants are illegal and unlawful, including conspiracies, and acts done in furtherance thereof by Defendants and their co-conspirators be adjudged to have been a per se violation (or alternatively illegal under a quick look or rule of reason standard) of Section 1 of the Sherman Act (15 U.S.C. § 1);

C. The Court permanently enjoin and restrain Defendants, their affiliates, successors, transferees, assignees, and other officers, directors, agents, and employees thereof, and all other persons acting or claiming to act on their behalf, from in any manner continuing, maintaining, or renewing the conspiracies alleged herein, or from entering into any other contract, conspiracy, or combination having a similar purpose or effect, and from adopting or following any practice, plan, program, or device having a similar purpose or effect;

D. The Court grant Plaintiffs and members of the Class all other equitable relief in the nature of disgorgement, restitution, and/or the creation of a constructive trust to remedy the Defendants' unjust enrichment;

E. The Court enter judgment against Defendants, jointly and severally, and in favor of Plaintiffs and members of the Class for treble the amount of damages sustained by Plaintiffs and the Class as allowed by law, together with costs of the action, including reasonable attorneys' fees, pre- and post-judgment interest at the highest legal rate from and after the date of service of this Complaint to the extent provided by law; and

F. The Court award Plaintiffs and members of the Class such other and further relief as the case may require and the Court may deem just and proper under the circumstances.

## JURY TRIAL DEMANDED

29. Plaintiffs and members of the Class demand a trial by jury on all claims so triable under Federal Rule of Civil Procedure 38(b).

## JURY TRIAL DEMANDED

174. Plaintiffs and members of the Class demand a trial by jury on all claims so triable under Federal Rule of Civil Procedure 38(b).

Dated: May 4, 2026

Respectfully submitted,

*/s/ Patrick J. Stueve*

Patrick J. Stueve, MO Bar #37682
Steve N. Six, MO Bar #45241
Caleb Wagner, MO Bar #68458
Benjamin J. Stueve, MO Bar #71197
STUEVE SIEGEL HANSON LLP
460 Nichols Road, Suite 200
Kansas City, Missouri 64112
Telephone: (816) 714-7100
Facsimile: (816) 714-7101
stueve@stuevesiegel.com
six@stuevesiegel.com
wagner@stuevesiegel.com
ben.stueve@stuevesiegel.com

Don M. Downing, MO Bar #30405
Jack A. Downing, MO Bar #70034
Dan R. Ritter, MO Bar #69298
GRAY RITTER GRAHAM
701 Market Street, Suite 800
St. Louis, MO 63101
Ph: 314.241.5620
ddowning@grgpc.com
jdowning@grgpc.com
dritter@grgpc.com

Rex A. Sharp, MO Bar #51205
Isaac L. Diel, MO Bar #39503
Hammons P. Hepner, MO Bar #77258
SHARP LAW, LLP
4820 W. 75th Street
Prairie Village, KS 66208
(913) 901-0505
rsharp@midwest-law.com
idiel@midwest-law.com
hhepner@midwest-law.com

Dated: May 4, 2026

Respectfully submitted,

*/s/ Patrick J. Stueve*

Patrick J. Stueve, MO Bar #37682
Steve N. Six, MO Bar #45241
Caleb Wagner, MO Bar #68458
Benjamin J. Stueve, MO Bar #71197
**STUEVE SIEGEL HANSON LLP**
460 Nichols Road, Suite 200
Kansas City, Missouri 64112
Telephone: (816) 714-7100
Facsimile: (816) 714-7101
stueve@stuevesiegel.com
six@stuevesiegel.com
wagner@stuevesiegel.com
ben.stueve@stuevesiegel.com

Don M. Downing, MO Bar #30405
Jack A. Downing, MO Bar #70034
Dan R. Ritter, MO Bar #69298
**GRAY RITTER GRAHAM**
701 Market Street, Suite 800
St. Louis, MO 63101
Ph: 314.241.5620
ddowning@grgpc.com
jdowning@grgpc.com
dritter@grgpc.com

Rex A. Sharp, MO Bar #51205
Isaac L. Diel, MO Bar #39503
Hammons P. Hepner, MO Bar #77258
**SHARP LAW, LLP**
4820 W. 75th Street
Prairie Village, KS 66208
(913) 901-0505
(913) 261-7564 Fax
rsharp@midwest-law.com
idiel@midwest-law.com
hhepner@midwest-law.com